

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER		PAGE 1 OF 23	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 12639526Q0102		6. SOLICITATION ISSUE DATE 05/02/2026
7. FOR SOLICITATION INFORMATION CALL:		a. NAME STEPHEN TEES			b. TELEPHONE NUMBER (No collect calls)		8. OFFER DUE DATE/LOCAL TIME 05/22/2026 1200 CT
9. ISSUED BY USDA APHIS 250 MARQUETTE AVE SUITE410 MINNEAPOLIS MN 55401				10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) 541690 ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A) SIZE STANDARD: \$19			
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO USDA-APHIS-VS-NVSL 1920 Dayton Avenue Ames IA 50010		CODE		16. ADMINISTERED BY USDA APHIS 250 MARQUETTE AVE SUITE410 MINNEAPOLIS MN 55401		CODE APHIS-MN-126395	
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY		CODE	
TELEPHONE NO.				☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	Period of Performance: 06/22/2026 to 04/23/2027 Deliverable 1.1, Signed VS Memo 800.2 for all Contactor employees Delivery: 10 Days After Award			1	EA		
0002	Deliverable 1.1, Project Management Plan Delivery: 10 Days After Award Continued ... (Use Reverse and/or Attach Additional Sheets as Necessary)			1	EA		
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	
				STEPHEN C. TEES			

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0003	Deliverable 1.1, Project Schedule (biweekly) Delivery: 30 Days After Award	20	EA		
0004	Deliverable 1.1, Project status meetings (weekly) Delivery: 10 Days After Award	40	EA		
0005	Deliverable 1.2, Document Request List and Access Plan Delivery: 30 Days After Award	1	EA		
0006	Deliverable 2.1, Statutory Authority Compendium Delivery: 3 Months After Award	1	EA		
0007	Deliverable 3.1, Inventory of Agency Documents Delivery: 4 Months After Award	1	EA		
0008	Deliverable 3.2, Regulatory Alignment Report Delivery: 5 Months After Award	1	EA		
0009	Deliverable 3.3, Final Benchmarking Report Delivery: 6 Months After Award Continued ...	1	EA		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL				
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		42b. RECEIVED AT (<i>Location</i>)	
		42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0010	Deliverable 4.1, Stakeholder Engagement Plan Delivery: 6 Months After Award	1	EA		
0011	Deliverable 4.2, Engagement Tools and Protocols Delivery: 6 Months After Award	1	EA		
0012	Deliverable 4.3, Stakeholder Engagement Summary / Notes Delivery: 7 Months After Award	1	EA		
0013	Deliverable 4.4, Stakeholder Insights Report & Presentation Delivery: 8 Months After Award	1	EA		
0014	Deliverable 5.1, Recommendations Report Delivery: 9 Months After Award	1	EA		
0015	Deliverable 5.2, Final Project Report Delivery: 10 Months After Award	1	EA		
0016	Deliverable 5.3, Presentation and Report Materials Delivery: 10 Months After Award	1	EA		

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

Statement of Requirement

This requirement is for the comprehensive third-party review and assessment of the USDA's Center for Veterinary Biologics' (CVB) statutory authorities, regulations, memorandums, notices and other guidance and supporting documents. See Attachment 1 – Performance Work Statement (PWS) for a complete list of requirements.

Technical Data

Technical data and supporting documentation associated with this solicitation are available through the following sources:

1. Solicitation Attachments

The following documents are included as attachments to this solicitation and can be accessed via the “Attachments/Links” section of the posting.

- Attachment 1 - Performance Work Statement (PWS)

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any contract awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference

Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-4	Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50	Combating Trafficking in Persons (Nov 2025)
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39	Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Sep 2025)
52.233-4	Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91	Security Prohibitions and Exclusions (Nov 2025)

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Regulations, and Guidance Documents
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52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☒ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☐ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
- ☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
 - ☐ Alternate III (Nov 2025) of 52.219-9.
 - ☐ Alternate IV (Nov 2025) of 52.219-9
- ☐ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
- ☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☐ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☐ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)
- ☐ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☐ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
- ☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
 - ☐ Alternate I (May 2008) of 52.223-9
- ☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services (Nov 2025)
- ☐ 52.224-3 Privacy Training (Jan 2017)
 - ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.225-3.
 - ☐ Alternate III (Nov 2025) of 52.225-3.
 - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☐ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☐ 52.237-3 Continuity of Services (Jan 1991)

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Regulations, and Guidance Documents
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- ☐ 52.240-92 Security Requirements (Nov 2025)
- ☒ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
 - ☐ Alternate I (Apr 2023) of 52.247-64.
 - ☐ Alternate II (Nov 2021) of 52.247-64

Other Applicable Clauses

- ☒ 52.227-14 Rights in Data-General (May 2014)

AGAR Clauses

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

AGAR 452.203-72 Unenforceable Supplier Terms (APR 2026)

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

1. Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.
2. Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

(b) Applicability. When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract shall govern and supersede any supplier terms in all cases.

(c) Authorization Required. Notwithstanding any other provision, no supplier terms shall be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.

(d) Unenforceable Terms. Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

1. Requires the Government to pay future fees, penalties, interest, legal costs, early termination fees, cancellation fees, minimum purchase commitments, trueup payments, seatcount minimums, usage minimums, continued use charges, or any other financial obligation not expressly authorized by the contract.
2. Requires the Government to indemnify the contractor or any other entity.
3. Restricts the Government's ability to obtain similar supplies or services from another source.
4. Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.
5. Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.
6. Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.
7. Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.
8. Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.
9. Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.
10. Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.
11. Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.
12. Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged nonpayment, alleged breach, automated security triggers.
13. Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.
14. Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

15. Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.
16. Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.
17. Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).
18. Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.
19. Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.
20. Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.
21. Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.

(e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier agreement or through the use of clickwrap, browsewrap, "I agree" mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.

(f) End user. The supplier agreement shall bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it shall not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.

(g) Law and disputes. The supplier agreement is governed by Federal law.

(h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

- (i) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.
- (j) Arbitration. Binding arbitration shall not be used unless specifically authorized by agency guidance.
- (k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).
- (l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.
- (m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.
- (n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.
- (o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.
- (p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.
- (q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

(r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

(End of Clause)

452.204-70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment.

(End of Clause)

452.239-72 Artificial Intelligence Property and Data Rights (Sept. 2025)

(a) Data Used to Train Artificial Intelligence (AI) Systems. The Government shall retain Unlimited Rights (as defined in FAR 52.227-14) in all data (which includes recorded information in any form such as raw or processed data sets or annotated training and testing sets) used to train, test, or validate AI systems developed or modified under this contract unless otherwise specified. The Contractor must provide metadata and data documentation sufficient to support future audits or retraining by the Government or third parties. The metadata provided must include descriptive information about data, including provenance, structure, content, schema, quality indicators, and processing history sufficient to enable independent understanding, audit, validation, and reuse.

NOTE- If the Contractor used proprietary databases and proprietary computer software to develop and train its AI system, unlimited rights may be unavailable. This scenario requires the Contractor to acquire, on behalf of the Government, a license encompassing use by third parties in accordance with FAR 52.227-14(c)(2).

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

(b) AI Models and Algorithms. Unless otherwise negotiated, the Government shall have Unlimited Rights in models, algorithms, and derivative works produced under this contract, including: pretrained model weight; model tuning artifacts; decision logic used in inference or scoring.

(c) Source Code and Technical Documentation. The Contractor must deliver all technical documentation, including source code, architecture specifications, and performance reports. The Government shall have Unlimited Rights in source code developed exclusively with Government funding.

(d) Third-Party Components. If the AI system includes third-party tools or open-source software, the contractor must: disclose all third-party licenses prior to delivery; acquire on behalf of the Government licenses of the same scope as that held by the Contractor in subject matter not first produced in the performance of the contract; certify that usage complies with federal security and data governance requirements; and provide documentation on integration with proprietary or black-box components.

(e) Restrictions on Use and Reuse by Contractor. The Contractor must not use, reproduce, or share Government-furnished data or models for any commercial or non-Government purposes without prior written approval from the Contracting Officer.

(f) Transparency and Reusability. To ensure responsible and ethical AI practices, the Contractor must: provide documentation that enables USDA or authorized third parties to evaluate, replicate, and explain AI behavior; maintain traceability of training data sources and preprocessing steps; deliver systems in formats that allow future retraining or transfer learning.

(End of Clause)

452.239-73 Privacy and Data Ownership (Sept. 2025)

(a) The Contractor must comply with all applicable federal privacy laws, regulations, and guidance, including but not limited to:

1. OMB Memorandum M-25-21, Accelerating Federal Use of AI through Innovation, Governance, and Public Trust.
2. OMB Memorandum M-25-22, Driving Efficient Acquisition of Artificial Intelligence in Government.
3. OMB Circular A-130, Managing Information as a Strategic Resource.
4. The Privacy Act of 1974 as amended.
5. FAR 52.224-1 (Privacy Act Notification) and FAR 52.224-2 (Privacy Act).

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

(b) The Contractor must: ensure that Personally Identifiable Information (PII) and other sensitive data are handled in accordance with USDA's privacy risk management framework; support transparency requirements by documenting the data elements collected, their intended use, and any automated decision-making associated with them, consistent with the Fair Information Practice Principles (FIPPs); coordinate with the USDA Privacy Officer and Contracting Officer's Representative (COR) to determine whether a Privacy Impact Assessment (PIA) is required.

1. A PIA is required when AI systematically and extensively evaluates personal aspects based on automated processing, including profiling; involves large-scale processing of special categories of data, such as health, biometric, racial, or political data; uses new or innovative technology (like AI/ML) in ways that could impact privacy; involves monitoring of publicly accessible areas on a large scale; presents high risks to individuals' rights and freedoms.
2. If a PIA is required, the Contractor must provide timely inputs to the Government for completion of the PIA prior to deployment or significant updates to any system; implement appropriate administrative, technical, and physical safeguards to protect PII and sensitive data, including: encryption at rest and in transit; role-based access controls; data minimization and retention limits; audit logging and incident detection; transparency measures, user notice, consent where applicable, and redress mechanisms.
3. The PIA must include appropriate administrative, technical, and physical safeguards to protect PII and sensitive data, to include encryption at rest and in transit; role-based access controls; data minimization and retention limits; audit logging and incident detection; transparency measures, user notice, consent where applicable, and redress mechanisms. This includes:
 - i. Description of data minimization, de-identification, and access control measures.
 - ii. Description of how the AI system will support privacy auditing and redress capabilities, where applicable.

(c) Privacy Risk Assessments. The Contractor must conduct Privacy Risk Assessments for systems or components that involve AI, data analytics, or automated decisions affecting individuals or communities. The Privacy Risk Assessment must outline: the extent to which the Offeror identifies and assesses potential privacy risks to individuals arising from the collection, use, retention, or sharing of personally identifiable information (PII); demonstrated understanding of the system's data flows, including data minimization, retention, and disclosure practices; strategies to mitigate privacy risks, including technical and administrative safeguards

Any AI system used in the performance of this contract must be evaluated by the Contractor for its potential to re-identify anonymized data; perpetuate bias or discrimination through data use; or infringe upon individual rights under the Privacy Act.

(d) Incident Notification. The Contractor must notify the Contracting Officer and USDA Security Operations Center within 24 hours of discovering any actual or suspected breach involving PII or AI hazards. A formal written report must be submitted to the COR within three business days with findings and proposed corrective actions.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

(e) Data Ownership and Return

All Government-furnished or Government-collected PII remains the property of the U.S. Government. Upon completion or termination of this contract, the Contractor must return or securely destroy all such data unless otherwise directed by the Contracting Officer.

(End of Clause)

452.239-75 Testing and Monitoring of Artificial Intelligence (Sept. 2025)

(a) Testing Requirements. The Contractor must conduct comprehensive testing of Artificial Intelligence (AI) components prior to deployment, to include functional testing against the stated objectives and intended uses; evaluation of performance consistency across diverse data inputs; bias detection and mitigation testing as outlined in NIST Special Publication 1270 and the AI RMF; and documentation of testing methodologies, metrics, results, and conclusions. The Contractor must provide a comprehensive description of its own testing, validation, and evaluation procedures for the AI system or service, including metrics used, as well as tools and methodologies employed. All pre-deployment testing must be completed and submitted to the Government COR prior to operational use.

(b) Ongoing Monitoring. The Contractor must implement ongoing monitoring procedures to ensure continued performance and responsible use of AI, including: periodic assessments of model accuracy, fairness, and explainability; model retraining triggers where applicable; logging and alerting mechanisms for anomalous outputs or decision processes; and quarterly submission of AI performance monitoring reports, including any updates made to the model, data, or algorithm.

(c) Government Access. The Government must have access to all relevant testing protocols, data sets (excluding proprietary training sets if explicitly exempted), results, and logs associated with the AI system's performance.

(d) Agency Independent Evaluation Rights. The Government will regularly monitor performance, risks, and effectiveness of AI systems and services. Additionally, the Government will perform quarterly independent evaluations of the AI system using agency-defined validation and testing datasets. The datasets used must closely reflect the operational data environment and system context. The Contractor must provide sufficient system access, interface support, and documentation to allow the Government to conduct its own evaluations. The Contractor must allocate time and system availability for quarterly evaluations, performed by the Government.

(e) Compliance. All testing and monitoring practices must comply with: OMB M-25-21; OMB M-25-22; and NIST AI Risk Management Framework (AI RMF).

(End of Clause)

Solicitation Information

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

Award Type

It is anticipated that a firm-fixed-price commercial services contract will be awarded as a result of this synopsis/solicitation.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation Criteria

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the offeror with the highest technically rated quotation with fair and reasonable pricing and acceptable or neutral past performance.

Technical Approach:

The technical approach will evaluate the ability of the offeror to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements. All offerors must provide the following minimum information and documentation with their quotations to be considered responsive and have their offers evaluated (listed in descending order of importance):

- Provide resumes for all proposed key personnel. Each resume must, at a minimum, demonstrate that the individual meets or exceeds the skills and experience qualifications specified in the PWS (See Section 7.0).
 - Professional references with direct knowledge of each individual's skills and experience must be included.
 - Any potential organizational or personal conflicts of interest must be fully disclosed.
 - For all personnel proposed to be hired, include a signed contingent letter by that person indicating willingness to be hired if the contract is awarded to the offeror.
- Detailed explanation of the offeror's experience and ability to perform the required services. A simple statement of capabilities will not suffice. The offeror must address how they will accomplish the requirements of section 3.0 and 4.0 of the PWS and clearly demonstrate the technical capability to meet these requirements.
 - Offerors may submit up to three (3) references for similar work completed within the past three (3) years. Each reference must involve work comparable in scope, size, and complexity to this requirement.
 - Each reference must include:
 - Brief description of the project
 - Dollar value and period of performance
 - The offeror's specific role (prime contractor, subcontractor, or joint venture partner)

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

- Tasks and responsibilities performed directly by the Offeror
- Information sufficient for the Government to verify the experience (e.g., contract number, customer organization, and point of contact)

Price:

The offeror must provide pricing for all the individual line items as requested in the SF-1449 Schedule of Items, including a total price. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Past Performance:

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Note: The offeror must disclose in a statement any planned or potential use of AI technologies in the performance of this contract and a Statement of Attestation if applicable, in accordance with AGAR provision 452.239-70, Notice of Potential Use of Artificial Intelligence (Sept 2025).

Failure to provide required information may result in the quotation being excluded from further consideration.

Evaluation Method:

All quotations will be evaluated to identify the offeror presenting the most technically advantageous solution based on the stated evaluation criteria. Once the highest technically rated offeror is identified, their price will be evaluated to determine whether it is fair and reasonable. Past performance will also be assessed to ensure it is acceptable or neutral.

Award will be made to the offeror whose proposal is determined to be the highest technically rated, provided that:

- The proposed price is fair and reasonable, and
- Past performance is assessed as acceptable or neutral.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

Award will not necessarily be made to the lowest-priced offeror. Tradeoffs will not be conducted.

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Questions must be submitted via email to stephen.tees@usda.gov and are due no later than May 8, 2026, at 5:00 PM Central Time. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email. Any questions received after that date may not be accepted or answered. Telephonic inquiries will not be honored.

- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services—Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.225-6 Trade Agreements—Certificate (Feb 2021)
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

52.233-2 Service of Protest (Sep 2025)

AGAR Provisions

452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (3) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (4) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.
(End of Provision)

452.239-70 Notice of Potential Use of Artificial Intelligence (Sept. 2025)

(a) The USDA hereby provides notice regarding the potential development and/or use of Artificial Intelligence (AI) technologies in connection with the performance of the contract. As part of this solicitation, the Agency is required to disclose whether the AI systems to be developed and/or used under this contract are expected to have high-impact AI implications.

(b) High-Impact AI: AI is considered high-impact when its output serves as a principal basis for decisions or actions with legal, material, binding, or significant effect on:

1. An individual's or entity's civil rights, civil liberties, or privacy;
2. An individual or entity's access to housing, insurance, credit, employment, and other programs;
3. An individual or entity's access to critical government resources or services;
4. Human health and safety;
5. Critical infrastructure or public safety; or
6. Strategic assets or resources, including high-value property and information marked as sensitive or classified by the Federal Government.

(c) The Agency has determined that the following is true of AI under this contract (the Contracting Officer shall select one of the following):

- ☐ High-impact AI will be developed as a deliverable of this contract.
- ☐ High-impact AI will be used in the performance of this contract.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

- ☐ AI will be developed in this contract but it will not involve high-impact AI.
- ☒ AI will be used in this contract but it will not involve high-impact AI.
- ☐ The Agency does not anticipate AI development or use in this contract. However, the Contractor must certify this in their submission.

(d) The Offeror must clearly disclose in a statement no longer than one page any planned or potential use of AI technologies in the performance of this contract. This includes, but is not limited to, the use of AI for data analysis, decision support, automation, predictive modeling, or natural language processing. The disclosure must identify the specific AI tools, models, platforms, or methodologies proposed, explain the purpose and function of the AI components, and describe how the use aligns with federal principles of transparency, accountability, and equity.

(e) Additionally, whether high-impact or not, the Offeror must disclose through a Statement of Attestation whether the proposed AI system is expected to impact or could potentially impact: privacy rights, including the collection, storage, or processing of personal data; civil liberties, such as freedom of expression, association, or assembly; discrimination or bias against individuals or groups, particularly regarding race, gender, ethnicity, or other protected categories.

(f) The Statement of Attestation must be certified by an authorized agent able to bind the Contractor. At a minimum, it must include the following:

1. The disclosures listed in the paragraph (e).
2. An assertion identifying if the AI qualifies as being high-impact.
3. If high-impact, any supporting rationale that the Contractor relied on to determine that the AI qualifies as being high-impact.
4. A detailed description/account of those safeties or rights that can be impacted by the AI, if the AI qualifies as high-impact.
5. A description of all controls, processes, technologies, and/or mechanisms used to satisfy the Office of Management and Budget Memorandum (M-25-21) requirements.
6. A description of the provenance of data used to train, fine-tune, or operate the AI.
7. An assertion that the Contractor owns or possesses all legally required rights, copyright, and licenses to use the AI, and that the Government's use of the AI in performance of the contract does not and will not infringe upon or violate any intellectual property rights or any other third-party rights of any kind. All licenses must include licenses to the Government and, in accordance with FAR 52.227-14(c)(2)(i) and (ii), the Contractor asserts it will acquire on behalf of the Government a license of the same scope as that held by the Contractor.
8. An assertion that the Contractor will report any claims of copyright infringement based upon performance of the contract in accordance with FAR 52.227-2.

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

9. An assertion that the Contractor will indemnify the Government against any liability incurred as the result of the violation of trade secrets, copyrights, or right of privacy or publicity under the contract, in accordance with FAR 52.227-18(b).
10. An assertion that there have been no persisting or existing material errors, defects, failures, or interruptions in the AI or in the performance of its intended purpose, and that the AI has materially performed in accordance with its specifications and intended purpose.
11. Description of the AI system or application; the purpose and function of the AI system; any potential or known impact the AI system may have on individual rights, including but not limited to privacy, non-discrimination, due process, and freedom of expression; measures taken to mitigate or address any potential risks to individual rights; whether the AI system proposed is anticipated to have any human health or safety-related impacts, including: potential safety risks to human operators, end-users, or other individuals affected by the AI system; environmental or infrastructure risks, including unintended outcomes that could affect public or private property; and the possibility of system malfunctions or failure modes that could lead to safety hazards; and the extent to which data subjects can opt-out, correct, or request the deletion of their personal data processed by AI.

(g) If high-impact AI technologies are proposed, the Offeror must comply with all applicable laws, regulations, and Agency policies designed to mitigate associated risks. This includes, but is not limited to, conducting proper risk assessments, ensuring transparency in decision-making, and implementing appropriate safeguards for privacy, fairness, and accountability.

(End of Provision)

**NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program**

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal

**Third-Party Review of the USDA's Center for Veterinary Biologics (CVB) Authorities,
Regulations, and Guidance Documents
12639526Q0102**

process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.

3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.